



कर्मचारी भविष्य निधि संगठन
(श्रम एवं रोजगार मंत्रालय, भारत सरकार)
EMPLOYEES' PROVIDENT FUND ORGANISATION
(Ministry of Labour & Employment, Govt. of India)
मुख्य कार्यालय / Head Office
भविष्य निधि भवन, 14-भोकाजी कामा प्लेस, नई दिल्ली-110 066.
Bhavishya Nidhi Bhawan, 14, Bhikaiji Cama Place, New Delhi - 110 066.

No.LC-3(1)06/Policy Matter/ 18298

Date: 19-09-2012

20 SEP 2012

To

All Zonal Additional CPFCs,
All RPFCs, ROs/SROs

Sub: Monitoring of court cases and periodical review – reg.

Ref.: MOL letter no. S-35018/1/2012-SS.II dated 07.09.2012.

Sir,

Please find enclosed the above mentioned letter of MOL&E enclosing therewith two proforma for maintaining the status of pending court cases and for maintaining the status of court judgments.

2. All concerned are requested to follow the instructions carefully in monitoring the court cases as was circulated earlier vide this office letter no. HRD/4(3)2012/Misc./66015 dated 07.09.2012 and to maintain the details of the cases and the judgments in the enclosed proforma.

Yours faithfully,

Encl.: As above

(P.K. Udgata)

Additional Central PF Commissioner (Compliance)

Copy to:-

1. All ACC Head Office/CVO/FA&CAO/ Director, NATRSS
2. All Zonal Vigilance Directorates
3. All Audit parties
4. All Officers, Head Office
5. Web Administrator for web upload
6. DD(OL) for Hindi version

(P.K. Udgata)

Additional Central PF Commissioner (Compliance)

(4) 493

No. L(1)/2009-RTI & Legal Cell
Government of India
Ministry of Labour & Employment
RTI & Legal Cell

Sharm Shakti Bhavan, Rafi Marg

New Delhi, 9th August 2012

CIRCULAR

Handling of Court Cases and cases pertaining to disciplinary matters has constantly been a matter of concern in the Ministry. Therefore, it has been decided that:

- i. Court Cases, pending before Hon'ble Supreme Court/Hon'ble High Court(s)/Hon'ble Central Administrative Tribunal(s) wherein the Union of India (through Secretary, Government of India, Ministry of Labour & Employment) & others are impleaded, should be reviewed periodically at all levels for taking necessary action required in the matter.
 - ii. All disciplinary proceedings should be settled in a time bound manner. This is especially true for disciplinary proceedings against officers who are on the verge of retirement since only a penalty of cut in pension can be imposed on retired officials. Disciplinary proceedings of such officers must be concluded before their retirement.
2. In case of any lapse on the above, the same should be entered into the APAR of the officers found responsible for such a lapse.
 3. This issues with the approval of Secretary (L&E).

(Ravi Mathur)

Additional Secretary (L&E)

To.

1. All Bureau Heads.
2. All Attached/Subordinate & Autonomous Organization(s), Ministry of Labour & Employment.
3. All Directors/Dy. Secretary(s)/Under Secretary(s) of Main secretariat.
4. PSO to Secy. (L&E)

13/8
.. (NJ)
14/8
.. (B)

SL No. 1 (ER) 144(CR)
No. S-35018/1/2012-SS.II
Government of India
Ministry of Labour & Employment

Shram Shakti Bhawan, Rafi Marg,
New Delhi, dated 7th September, 2012.

To,

The Central Provident Fund Commissioner,
Employees' Provident Fund Organisation,
14, Bhikaji Cama Place,
New Delhi-110066.

प्राप्त दि. 11/9/12
संस्थापित संग्रह-1 (अनुसूचित/दिन)
R.P.F.C.-I (Coordination/Legal)

Urgent. Pl put up
immediately.

Prinila
11.9.12
RC II, Legal

6.55
11/9/12

[Kind Attn: Smt. Anita Sinha Dixit, RPFC (Legal)]

Subject: Proforma for status of pending Court cases-reg.

Madam,

I am directed to forward herewith a note No C-18019/2/2012-Admn. I dated 21.08.2012 of this Ministry alongwith its enclosure with the request to staunts of pending court cases and judgements may be maintained in the enclosed proforma.

Encl: As above.

Yours faithfully,

(S.K. Brahmo)
(S.K. Brahmo)

Section Officer

☎ 23473159

QSD/ERS
12/09/12
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12/9/12

STATUS OF COURT JUDGEMENTS

Sl.No.	Court Case No.	Court Name	Date of judgement	Brief content of Judgement	Status of Judgement (Order complied with/date of appeal)

STATUS OF COURT CASES

Sl.No	Court Case No.	Court Name	Status of Counter Affidavit filed	Date of Rejoinder filed	Status of counter Rejoinder filed	Remarks